

PROCEDURES FOR LOCATION OF SELF-CONTAINED
SPECIAL EDUCATION PROGRAMS

The purpose of this Regulation is to establish procedures to be implemented whenever a self-contained special education program is to be moved to a different school location or when a new self-contained special education program is to be established in a school. A self-contained education program is a learning environment for students who require highly supportive and supervised special education services throughout the school day which may include enhanced staffing, specialized supports, and/or access to an adaptive curriculum.

A. Contributing Factors for Determining Program Location. The Office for Special Education staff will consider the following before moving an existing and/or when establishing a new self-contained special education program:

1. Specialized instructional program needs;
2. Geographic location of existing programs;
3. Vertical alignment and matriculation of student cohorts;
4. Projected school capacity and enrollment;
5. Structural footprint of school building (classroom size and location within the school, dedicated bathrooms and changing areas, etc.);
6. Staffing standards, existing and projected program enrollment; and
7. Unanticipated or extenuating circumstances.

B. Notification Procedures. Timely written notification will be provided to the parents/guardians of impacted students when an existing self-contained program needs to be moved to a new school location.

1. Parents/guardians will be provided the opportunity to address any questions or concerns related to the location of a student's program with an Office for Special Education administrator;
2. The Office for Special Education administrator will provide written notification to the parent/guardian on or before June 30. If the program movement occurs after June 30, written notification will be provided immediately upon identification of the need for program movement;

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3. The written notification will include the following:
- a. contributing factors for the self-contained program movement;
 - b. name and location of the new school;
 - c. name and contact information of the Office for Special Education administrator;
 - d. the timeline for the parent/guardian to follow up if they have concerns or questions; and
 - e. name, title, and contact information of the new school principal.

4. New Programs. When applicable, the Office for Special Education staff will notify the parents/guardians of impacted students of the opportunity to move to a newly established self-contained program that is in closer proximity to their residence.

- a. Parents/guardians will be afforded the opportunity to have their student remain in the current school provided the self-contained program will remain in that location the following school year.
- b. The principal will send a welcome letter to the parent/guardian. The welcome letter should include essential back-to-school dates and/or information for new students as well as the opportunity to discuss any questions, and/or opportunities to visit the school, or schedule a meeting to discuss their student's needs.

This Regulation shall not be construed to modify any student rights under the Individuals with Disabilities Education Act, Section 504 of the Rehabilitation Act of 1973, or the Americans with Disabilities Act.

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